

SENATE No. 1077

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act maintaining parity in legal services for small property owners.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>

SENATE No. 1077

By Mr. Durant, a petition (accompanied by bill, Senate, No. 1077) of Peter J. Durant and Bruce E. Tarr for legislation to maintain parity in legal services for small property owners by providing financial assistance to both local and statewide programs that serve eligible clients. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act maintaining parity in legal services for small property owners.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 221A of the General Laws is hereby amended by striking out
2 section 1, as appearing in the 2010 Official Edition, and inserting in place thereof the following
3 section:-

4 Section 1. As used in this chapter, the following words and terms shall have the following
5 meanings:—

6 “Board”, the board of directors of the Massachusetts Legal Assistance Corporation.

7 “Corporation”, the Massachusetts Legal Assistance Corporation.

8 “Eligible client”, any indigent person or qualified small business land owner (“QSBLO”)
9 who is a resident of the commonwealth.

“Fee generating case”, any matter which, if undertaken on behalf of an eligible client by an attorney in private practice, may reasonably be expected to result in payment of the fee of such attorney from an award to the client or by the opposing party.

“Fiscal year”, the twelve-month period beginning on July first and ending on June thirtieth.

“Fund”, the Legal Assistance Fund.

“Indigent person”, a person who receives public assistance under the Massachusetts Aid to Families with Dependent Children, general relief or veterans’ benefits programs or receives assistance under Title XVI of the Social Security Act, or the Medicaid Program, 42 USC 1396 to 1396(n), inclusive, or a person whose income, after taxes, is one hundred and twenty-five per cent or less of the current poverty threshold annually established by the United States Office of Management and Budget, or a person who is otherwise considered indigent due to hardship circumstances under standards established by the board.

“Local program”, a qualified legal services program serving clients in an area limited to certain counties, cities, or towns of the commonwealth.

“Qualified legal services program”, a nonprofit program which provides legal services in civil cases without charge to indigent persons and has a board of directors composed of both attorneys and consumers of legal services. Legal services programs which have been or are funded in whole or in part by the Legal Services Corporation established pursuant to 42 USC 2996 to 2996(l), inclusive, shall be presumed to be qualified legal services programs.

“Qualified small business land owner” (“QSBLO”), a landowner owning, personally or through a business entity, three or fewer properties whose annual income falls below guidelines set by the Board or who property(ies) fall with the Loan to Value guideline ratios established by the Board.

“Recipient”, a qualified legal services program receiving financial assistance under this chapter.

“Statewide program”, a qualified legal services program serving eligible clients, or providing support services to local programs throughout the commonwealth.

SECTION 2. Chapter 221A of the General Laws is hereby amended by striking out section 9, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

Section 9. The corporation shall, subject to appropriation or to the amount of monies available from the fund, or from funds made available from any other public or private source, provide financial assistance to both local and statewide programs. In each fiscal year at least 80 per cent of such financial assistance shall be distributed to local programs on a basis proportionate to the number of eligible clients within the service areas of such local programs. Up to 20 per cent of such assistance may be distributed to statewide programs.

Eligible client calculations shall also consider parity amongst participants in landlord tenant disputes to determine if the landlord of an eligible client tenant is also an eligible client as a qualified small business land owner” (“QSBLO”). If a tenant pursuing legal action against his or her landlord or a tenant involved in a Summary Process Action described in chapter 239 is deemed eligible, before they may receive service the tenant’s landlord shall be notified and

evaluated for need. If the landlord is deemed eligible as a QSBLO then no legal service may be provided to the eligible client tenant unless legal services are also provided to the eligible landlord.

In the distribution of such assistance the corporation shall insure the maintenance of the highest quality of service and professional standards, the preservation of attorney-client relationships, and the protection of the integrity of the adversary process from any impairment, and that recipients, consistent with goals established by the corporation, shall adopt procedures for determining and implementing priorities for the provision of such assistance, taking into account the relative needs of eligible clients for such assistance, including such outreach, training, and support services as may be necessary, including, particularly, the needs for service on the part of significant segments of the population of eligible clients with special difficulties of access to legal services or special legal problems, including elderly and handicapped individuals, and appropriate training and support services; and, in order to provide such assistance to such significant segments of the population of eligible clients; that attorneys employed full time in legal assistance activities supported in major part by the corporation refrain from any compensated outside practice of law, and any uncompensated outside practice of law except as authorized in guidelines promulgated by the corporation; and that no financial assistance distributed pursuant to this chapter shall be used to provide legal assistance with respect to any fee generating case, or to provide legal assistance with respect to any criminal proceeding or civil action arising out of or brought for the purpose of challenging the validity of a criminal conviction, or to provide services to persons who are not eligible clients; and that a substantial amount of financial assistance distributed pursuant to this chapter shall be provided, under

74 standards established by the board, for compensation for legal services to indigent persons which
75 are provided by attorneys who engage in the private practice of law.

76 SECTION 3. The board of directors of the Massachusetts Legal Assistance Corporation
77 shall establish guidelines for determining qualified small business land owners through income
78 or through the loan to value ratio of the property or properties.